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JANE BA DOE, et al. vs NORWALK-LA MIRADA UNIFIED SCHOOL DISTRICT

CASE NO.: 24NWCV03323

HEARING: July 30, 2026 @ 9:30 a.m.

#11

TENTATIVE ORDER

Defendant Norwalk-La Mirada Unified School District's Motion to Sever is DENIED.

Defendant to give notice.

Background

This is a negligence action for sexual assault of a minor on school property. On September 24, 2024, Plaintiff Jane BA Doe and Jane MBG Doe, a minor, by and through her guardian ad litem Bertha Cetina ("Plaintiffs") filed this action against Defendant Norwalk-La Mirada Unified School District ("NLMUSD") and Does 1 to 1006. The Complaint alleges that NLMUSD negligently hired, supervised, and retained teacher Scott Waln ("Waln"), who sexually abused Plaintiffs while they were his students. Plaintiff Jane BA Doe was Waln's student in 2016 to 2017. Plaintiff Jane MGB Doe was Waln's student in 2021 to 2022.

NLMUSD now moves to sever each Plaintiffs' claims for purposes of trial only.

Legal Standard

"When parties have been joined under Section 378 or 379, the court may make such orders as may appear just to prevent any party from being embarrassed, delayed, or put to undue expense, and may order separate trials or make such other order as the interests of justice may require." (Code Civ. Proc., § 379.5.)¿

“The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Code Civ. Proc., § 1048, subd. (b).)¿

Discussion

NLMUSD argue that trial should be severed because each plaintiff has a distinct legal action involving separate issues of liability, causation, and damages. NLMUSD asserts that trying the Plaintiffs' cases in a single trial would confuse the jury on such issues, especially even that Waln's "alleged abuse of each Plaintiff varies in nature, location, and time, such that alleged acts of WALN's abuse toward one Plaintiff is irrelevant to that alleged toward the other Plaintiff[]." (Mot., 3:2-3.) Specifically, there needs to be individualized inquiries as to 1) NLMUSD's duties to Plaintiffs, 2) NLMUSD's alleged notice of Plaintiffs' abuse for purposes of ratification, and 3) the nature and extent of Waln's abuse. NLMUSD asserts that a joint trial would cause jury confusion and prejudice to its detriment. For example, "the jury is unlikely to care what the District did or didn't do in conjunction with each of the individual Plaintiff's claims." (Mot., 7:17-18.) Further, testimony of each individual Plaintiff would be "highly prejudicial given the inevitable cumulative effect of combined evidence on damages" and would risk a decision based on emotion. (Mot., 8:20-21.)

In opposition, Plaintiffs assert that their claims were properly joined under Code of Civil Procedure section 378. Plaintiffs assert their claims arise from NLMUSD's "continuing failure to hire, supervise, retain, monitor, and report a single dangerous employee at a single school." (Opp., 5:25-26.) In other words, this case arises out of a series of NLMUSD's misconduct. Further, common questions of law and fact exist in Plaintiffs' cases. Specifically, the following inquiries are at issue in both cases: 1) whether NLMUSD negligently hired Waln, 2) whether NLMUSD had notice of Waln's dangerous propensities, 3) whether NLMUSD had proper policies to supervise teachers and report incidents, and 4) whether NLMUSD had a "pattern and practice" of failing to protect its students. (See Compl., ¶¶ 31-32, 55-63, 65-69, 71-77, 98.) As to duty, courts have held that a school districts' duty to protect its students arises from its special relationship with all of its students. Thus, the case does not center around the extent and nature of Waln's sexual abuse as to each Plaintiff—rather, it centers around the negligence of NLMUSD in protecting its students.

Plaintiffs further argue that separate trials would undermine judicial economy. Two trials would require that witnesses testify twice and that the same records be introduced twice. Additionally, there would be minimal prejudice to NLMUSD if trial is not severed because 1) key evidence is cross-admissible (i.e., evidence of Waln's abuse and NLMUSD's notice), and 2) the presentation of damages in a multi-plaintiff case is commonplace. Plaintiffs assert that any jury confusion may be mitigated via limiting instructions, such as CACI No. 103.

In reply, NLMUSD asserts that issues of notice and its supervisory policies differ as to each Plaintiff, arguing that its "conduct and knowledge from the years before 2016 are quite dissimilar to the District's conduct and knowledge in the five years between BA's alleged abuse and MBG's alleged abuse in 2021." (Reply., 4:21-23.) NLMUSD notes that evidence that it plans to present in defense to each Plaintiffs' claims are different. NLMUSD reiterates that a single trial would result in prejudice to it, especially given the sympathetic nature of Plaintiffs' claims.

The Court agrees with Plaintiffs. The differences in the timing and extent of Waln's abuse in each case do not make the cases completely unrelated. The Court finds that Plaintiffs' claims involve related issues of law and fact regarding NLMUSD's negligent hiring of Waln, whether NLMUSD had notice of Waln's propensities, and whether NLMUSD maintained appropriate supervision/reporting policies. The Court finds that evidence from both cases are cross-admissible and go to the core of each case.

Further, the Court is aware that Plaintiffs' cumulative testimony of their abuse creates a risk that jury will be more sympathetic, resulting in prejudice to NLMUSD. Yet the Court agrees a trial severance is inappropriate means to address such concern. Exclusion of evidence is only appropriate where its prejudicial effect (such as evoking an emotional bias) is outweighed by its probative value. (See *People v. Karis* (1988) 46 Cal.3d 612, 638 ["The prejudice which exclusion of evidence under Evidence Code section 352 is designed to avoid is not the prejudice or damage to a defense that naturally

flows from relevant, highly probative evidence. . . The 'prejudice' referred to in Evidence Code section 352 applies to evidence which uniquely tends to evoke an emotional bias against the defendant as an individual and which has very little effect on the issues. In applying section 352, 'prejudicial' is not synonymous with 'damaging.'"], emphasis added, citations omitted.) Here, the Court finds that Plaintiffs' testimony of their abuse and NLMUSD's knowledge of such abuse is highly probative, and any concerns of prejudice can be mitigated with limiting instructions to the jury.

Lastly, the Court finds that a trial severance would go against interests of judicial economy. A trial severance would require duplicative testimony and introduction of evidence based on the common issues in each case.

Accordingly, NLMUSD's Motion to Sever is denied.